

JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

R.F.A. No.409 of 2013

Perfetti Van Melle Benelux B.V.

Versus

Aamir Shahzad.

J U D G M E N T

Date of hearing: 22.04.2026

Appellant by: M/s Hassan Irfan Khan, Mudassir Hassan,
Ch. Asif Amin Goraya & Yasir Munawar
Cheema, Advocates for appellant.

Respondent by: Exparte against respondent vide order dated
17.02.2026.

Ch. Sultan Mahmood, J. This regular first appeal, filed under Section 96 of the Code of Civil Procedure, 1908 calls into question the judgment and decree dated 29.11.2012, whereby the learned Additional District Judge, Faisalabad, proceeded to dismiss the suit instituted by the appellant for grant of permanent injunction restraining the respondent perpetually from infringing the Registered Trademark “**MENTOS**” and its Distinctive Colourscheme, Design and Get up of the respondent and passing of appellant’s products as and for the products of the respondent and for damages, accounts, etc.

2. Brief facts giving rise to the instant appeal, are that the appellant instituted a suit for grant of permanent injunction restraining the respondent perpetually from infringing the Registered Trademark “**MENTOS**” and its Distinctive Colourscheme, Design and Get up of the respondent and passing of appellant’s products as and for the products of the respondent and for damages, accounts, etc. by maintaining that it is an internationally renowned company originating from the Netherlands, manufacturing high-quality confectionery products under the trademark “**MENTOS**” which has acquired

substantial goodwill and reputation worldwide and the respondent, with mala-fide intent, started manufacturing and marketing peppermint under the deceptively similar trademark “**MINTOS**” with an almost identical colour scheme, design and get-up, in this manner causing confusion among consumers and resulting in loss of goodwill, reputation and business to the appellant.

Alongwith the suit, an application for grant of temporary injunction was also filed. Suit as well as application for grant of temporary injunction was resisted by the respondent while submitting written statement and written reply. Learned trial Court after hearing arguments vide order dated 24.06.2004 dismissed the application for grant of temporary injunction. Being aggrieved of the said order, the appellant filed F.A.O. No.237 of 2004 before this Court, which was disposed of vide order dated 18.02.2005 whereby the impugned order was set aside and the parties were directed to appear before the learned trial Court for re-hearing. Thereafter, learned trial Court vide order dated 22.02.2010 while allowing the application of the appellant for grant of temporary injunction framed necessary issues keeping in view the divergent pleadings of the parties. Both the parties produced their respective evidence and on completion of the same, the suit was dismissed through judgment & decree dated 17.10.2011 passed by the learned trial Court. Being dissatisfied, the appellant filed R.F.A. No.180 of 2012 before this Court, which was allowed through order dated 30.05.2012 with concurrence of both the parties and matter was remanded to the learned trial Court with the direction to the learned trial Court to reframe the issues, if needed be alongwith the onus placed on the existing issues. After remand, the learned trial Court through the impugned judgment & decree dated 29.11.2012 dismissed the suit of the appellant. Hence, the instant appeal.

3. Perusal of the order sheet reflects that on 11.06.2021, Mr. Naseer Ahmad Jaura, Advocate, appeared on behalf of respondent No.1; however, he subsequently failed to appear on 23.01.2023, whereupon notice of parivi was ordered to be issued to him. Despite his appearance on 22.01.2026, he again failed to appear on 17.02.2026

despite repeated calls and reflection of his name in the cause list; hence, the respondent was proceeded against ex parte.

4. Learned counsel for the appellant contends that the appellant has the registered proprietor of the trademark “**MENTOS**”, which has been registered in Pakistan since 11.07.1990, and both the appellant and the respondent are operating in the same field, as the respondent is also manufacturing mint candies under the mark “**MINTOS**”. He argued that the learned trial Court fell into error while deciding Issue No.1, as it failed to determine the controversy on the touchstone of trademark infringement and passing off and instead was swayed by considerations relating to the alleged distinctiveness of the shape of the product, which was beyond the mandate of law because the learned trial Court ought to have examined whether the use of the mark “**MINTOS**” being deceptively similar to the appellant’s registered trademark “**MENTOS**” amounted to infringement, irrespective of any differences in the shape or other features of the product, thus the impugned judgment and decree is not sustainable in the eyes of law, which is liable to be set aside and suit of the appellant be decreed.

5. Learned counsel for the appellant, however, pressed the appeal only to the extent of grant of permanent injunction and did not press the same to the extent of damages and accounts.

6. Heard. Available record has been perused.

7. A trademark is essentially a distinctive mark, symbol, word or combination thereof, adopted and used by a trader to identify his goods and to distinguish the same from those of others. The law relating to trademarks, historically rooted in the principle of protection of goodwill, aims not only to safeguard the proprietary rights of a trader but also to protect consumers from deception and confusion in the course of trade. The Trade Marks Act, 1940, thus provides a statutory mechanism to ensure that the goodwill and reputation attached to a mark are not misappropriated by others.

8. In cases of alleged infringement of trademarks, the true test is whether the resemblance between the competing marks is such as is likely to deceive or confuse an ordinary purchaser exercising average intelligence and imperfect recollection. While comparing two trademarks, the Court must consider their overall structure, phonetic similarity, common features, nature of goods and the class of purchasers and if the resemblance is such as to cause confusion in the mind of an ordinary purchaser, the subsequent mark cannot be allowed to stand¹. Even similarity in prefix, suffix and number of letters was held sufficient to establish likelihood of deception. Where a competing mark incorporates the striking or essential feature of a registered trade mark, the mere addition of prefixes, suffixes or minor variations does not dispel the likelihood of confusion and such adoption reflects dishonest appropriation of the goodwill attached to the registered mark, which is commonly referred to as the doctrine of “dominant feature”².

9. In the present case, with the able assistance of learned counsel for the appellant, I have gone through the photostate copies of the competing trademarks. It is an admitted position that the appellant is the registered proprietor of the trademark “**MENTOS**”, whereas the respondent is using the mark “**MINTOS**” in respect of identical goods, i.e., mint candies. Bare comparison of the two marks shows that they are visually, phonetically and structurally similar, having the same number of letters, common prefix and suffix and are likely to cause confusion in the minds of unwary consumers of average intelligence and imperfect recollection. The essential and dominant feature of the appellant’s registered trademark “**MENTOS**” stands substantially reproduced in the respondent’s mark “**MINTOS**”. The minor variation of substituting the letter “E” with “I” does not create any real distinction and is insufficient to dispel the likelihood of confusion, particularly for an unwary consumer of average intelligence and imperfect recollection. The doctrine of dominant

¹ EKHLAS AHMAD v. DAE HEALTH LABORATORIES LTD., LONDON AND ANOTHER (1980 SCMR 625).

² Messrs Farooq Ghee and Oils Mills (Pvt.) Ltd. v. Registrar of Trade Marks, Trade Mark Registry and others (2015 SCMR 1230)

feature squarely applies in the present case and the respondent cannot escape liability by pointing to peripheral distinctions.

Over and above, it is an admitted fact that the appellant is the registered proprietor of the trade mark “**MENTOS**” in Pakistan since 11.07.1990, whereas the respondent/defendant claims copyright registration but has no registered trade mark. It is trite law that trade mark rights and copyright protection operate under entirely different statutes, protect distinct subject matter and serve different legal purposes. There is a clear and sharp distinction between trade mark rights, which protect the commercial identity and source of goods in trade and copyright, which protects original artistic or literary expression and an attempt to justify or legitimise trade mark infringement under the garb of copyright protection cannot be accepted, as such an approach cannot defeat the statutory rights of a registered trade mark proprietor³. The respondent has adopted a deceptively similar mark for identical goods, which infringing the registered trademark of the appellant. The learned trial Court has neither properly considered nor appreciated the evidence available on record in its true perspective while passing the impugned judgment & decree and has instead given undue weight to irrelevant considerations relating to the shape and packaging of the product, which cannot be allowed to sustain.

10. Pursuant to the above, the appeal in hand is **allowed**, impugned judgment and decree dated 29.11.2012 is set aside, consequent whereof the suit of the appellant-plaintiff for grant of permanent injunction restraining the respondent perpetually from infringing the Registered Trademark “**MENTOS**” and its Distinctive Colourscheme, Design and Get up of the respondent and passing of appellant’s products as and for the products of the respondent stands decreed.

(Ch. Sultan Mahmood)
Judge

M. Usman.*

Approved for Reporting.

Judge

³ Tapal Tea (Pvt.) Ltd. v. Shahi Tea Co. (2002 CLD 1113), Pak Drug House v. Rio Chemical (2003 CLD 1531, Messrs ADT Services AG v. ADT Pakistan (Pvt.) Ltd (2005 CLD 1546, Muhammad Wahid v. Adnan Memon (2010 CLD 450)